



File No.: EXP202312197

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by Ms. A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated April 10, 2024, and based on the following

FACTS

FIRST: On April 10, 2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202312197, in which it was agreed to uphold for formal reasons the complaint regarding the exercise of rights filed by Ms. A.A.A. against VODAFONE ESPAÑA, S.A.U.

SECOND: The resolution now being appealed was duly notified to the appellant on April 16, 2024, as evidenced by the acknowledgment of receipt in the file.

THIRD: The appellant has submitted to this Spanish Agency for Data Protection, a recourse for reconsideration, in which, in summary, she states that "(...) the cancellation of my personal data should have been made effective within 10 days following my request, which was made on May 29, 2023. However, it was not made effective until September 26, 2023. During this time, Lowi, despite being aware of the letter from the Ministry of Telecommunications, ignored it. Therefore, it has used my data from May to September, a period during which I did not allow it to use my data."

The appellant indicates that "(...) Lowi claims that it was unaware of the resolution due to problems in the administrative notification process. According to Law 39/2015 on the Common Administrative Procedure of Public Administrations, notifications must be made in a way that ensures that the act effectively reaches the knowledge of its recipient. If the notification cannot be delivered in person, there are established procedures to ensure that the interested party is informed. Furthermore, jurisprudence has established that the obligation to notify is considered fulfilled when the notification is made available in the Electronic Headquarters of the acting administration or body, or in the single enabled electronic address.

Therefore, I believe that LOWI should have had sufficient knowledge of the resolution of the Ministry of Telecommunications. The lack of adequate notification is not a sufficient reason to disregard the decision made."

The appellant concludes by requesting a fine or sanction against Lowi for its negligence, as, in her opinion, the matter should have been resolved with the resolution of the Secretary of State for Telecommunications and Digital Infrastructures.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

Regarding the statements made by the appellant, it should be noted that the rights procedure is instructed as a result of the lack of attention to any of the rights regulated in data protection legislation, in the terms indicated by Article 64.1 of the LOPDGDD:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an agreement of admission to processing, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the agreement of admission to processing was notified to the complainant. After that period, the interested

party may consider their complaint upheld.”

In this case, it has been established that, during the processing of the aforementioned rights procedure filed precisely due to the lack of adequate response to the request for the exercise of rights, the respondent, however, provided documentation proving the deletion of the appellant's personal data, although once the legally established deadline had passed and after the complaint was filed by the appellant.

Based on these circumstances, the resolution now being appealed upheld the complaint for formal reasons, because precisely the respondent attended to the requested right once the legally established deadline had elapsed.

As stated in the aforementioned provision, the rights exercise procedure refers exclusively to the lack of request for the exercise of rights and is not intended to determine the possible existence of an infringement. The rights exercise procedure will conclude with a dismissal if it is verified that it has indeed been attended to; or with the acceptance of the same if it is established that it has not been attended to. The acceptance will have a formal character when the right is only...

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attended after the presentation of the claiming party, as occurred in the present case.

For the reasons stated, this Agency is not competent to assess the statements of the appealing party regarding the deadlines or the manner in which a resolution from the Ministry of Telecommunications should be notified, nor can it impose a sanctioning resolution, since such imposition is not the purpose of the procedure whose resolution was the subject of this appeal.

III

Conclusion

After examining the appeal for reconsideration submitted by the interested party, it does not provide new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution, therefore it is appropriate to agree to its dismissal.

IV

Late Resolution

Due to reasons related to the functioning of the administrative body, and therefore not attributable to the appealing party, as of the date of this document, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

According to the provisions of Article 24 of the LPACAP, the effect of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time elapsed, the Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of their initiation method, as provided in Article 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

In view of the cited provisions and others of general application,
the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by Ms. A.A.A. against the Resolution of this Spanish Agency for Data Protection issued on April 10, 2024, in file EXP202312197.

SECOND: TO NOTIFY this resolution to Ms. A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure, an appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law

29/1998, of July 13, regulating the
Contentious-Administrative Jurisdiction, an administrative contentious appeal before the
Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article
25 and Section 5 of the fourth additional provision of the aforementioned legal text.

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